

JS 44 (Rev. 06/17)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS ROMAN GORIVODSKY (b) County of Residence of First Listed Plaintiff <u>BERGEN</u> <i>(EXCEPT IN U.S. PLAINTIFF CASES)</i> (c) Attorneys (Firm Name, Address, and Telephone Number) Adam S. Barrist, Esq., 215-432-8829 P.O. Box 1820, Media, PA 19063	DEFENDANTS AMAZON LOGISTICS County of Residence of First Listed Defendant _____ <i>(IN U.S. PLAINTIFF CASES ONLY)</i> NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED. Attorneys (If Known) _____
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II. BASIS OF JURISDICTION (Place an "X" in One Box Only)	III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)																
☐ 1 U.S. Government Plaintiff ☐ 2 U.S. Government Defendant ☐ 3 Federal Question (U.S. Government Not a Party) ☒ 4 Diversity (Indicate Citizenship of Parties in Item III)	<table style="width: 100%;"> <tr> <th style="text-align: left;">PTF</th> <th style="text-align: left;">DEF</th> <th style="text-align: left;">PTF</th> <th style="text-align: left;">DEF</th> </tr> <tr> <td>Citizen of This State</td> <td>☒ 1</td> <td>☐ 1 Incorporated or Principal Place of Business In This State</td> <td>☐ 4 ☐ 4</td> </tr> <tr> <td>Citizen of Another State</td> <td>☐ 2</td> <td>☐ 2 Incorporated and Principal Place of Business In Another State</td> <td>☐ 5 ☒ 5</td> </tr> <tr> <td>Citizen or Subject of a Foreign Country</td> <td>☐ 3</td> <td>☐ 3 Foreign Nation</td> <td>☐ 6 ☐ 6</td> </tr> </table>	PTF	DEF	PTF	DEF	Citizen of This State	☒ 1	☐ 1 Incorporated or Principal Place of Business In This State	☐ 4 ☐ 4	Citizen of Another State	☐ 2	☐ 2 Incorporated and Principal Place of Business In Another State	☐ 5 ☒ 5	Citizen or Subject of a Foreign Country	☐ 3	☐ 3 Foreign Nation	☐ 6 ☐ 6
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Citizen or Subject of a Foreign Country	☐ 3	☐ 3 Foreign Nation	☐ 6 ☐ 6														

IV. NATURE OF SUIT (Place an "X" in One Box Only)					Click here for: Nature of Suit Code Descriptions.
CONTRACT ☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	TORTS PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☒ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	FORFEITURE/PENALTY ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	BANKRUPTCY ☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	OTHER STATUTES ☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes	
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)							
☒ 1 Original Proceeding	☐ 2 Removed from State Court	☐ 3 Remanded from Appellate Court	☐ 4 Reinstated or Reopened	☐ 5 Transferred from Another District (specify)	☐ 6 Multidistrict Litigation - Transfer	☐ 8 Multidistrict Litigation - Direct File	

VI. CAUSE OF ACTION	Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity): <u>28 U.S.C §1332</u> Brief description of cause: <u>Motor vehicle collision in Cliffside Park, NJ.</u>
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VII. REQUESTED IN COMPLAINT:	☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.	DEMAND \$ In excess of \$150,000.00	CHECK YES only if demanded in complaint: JURY DEMAND: ☒ Yes ☐ No
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VIII. RELATED CASE(S) IF ANY	(See instructions): JUDGE _____ DOCKET NUMBER _____
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DATE 05/13/2022	SIGNATURE OF ATTORNEY OF RECORD /s/ ASB3587
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FOR OFFICE USE ONLY	RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____
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JURISDICTION AND VENUE

3. Jurisdiction is conferred pursuant to 28 U.S.C §1332 as Plaintiff is a citizen, resident and domiciliary of the State of New Jersey and Defendant has a principal place of business in, place of incorporation in and citizenship of the State of Georgia.
4. There is, therefore, complete diversity between all Plaintiffs and all Defendants.
5. The amount in controversy exceeds the sum of \$75,000.00, exclusive of interest, fees and costs.
6. Venue is proper in this Court pursuant to 28 U.S.C. § 1391(b)(1) and (2), as the personal injuries that are the subject of this litigation occurred in Cliffside Park, NJ, within this District.

FACTS

7. On February 22, 2021, Mr. Gorivodsky was severely injured when Alberto Palma-Perez (“Mr. Palma-Perez”), while in the course and scope of employment with Amazon, negligently struck Mr. Gorivodsky’s vehicle from behind while Mr. Gorivodsky was stopped at a stop sign on Crescent Lane near the intersection with Railroad Avenue in Cliffside Park, NJ.
8. Such violent collision caused Mr. Gorivodsky to a) sustain the permanent injuries described below, that have caused his body to not heal or function normally with further medical treatment; and b) suffer significant financial harm.

COUNT ONE – NEGLIGENCE

9. Plaintiff incorporates, by reference, the foregoing paragraphs, as though set forth fully herein.
10. As the direct and proximate cause of Defendant’s negligence as stated above, Mr.

Gorivodsky has suffered severe permanent physical injury, disfigurement and financial loss.

11. The injuries that Mr. Gorivodsky has sustained are permanent in nature. Mr. Gorivodsky has suffered great physical and mental pain and anguish, and in all reasonable probability, will continue to suffer in this manner for a long time in the future, if not for the balance of his natural life.
12. As a further result of the above negligent acts committed by Defendant, Mr. Gorivodsky has incurred and will continue to incur substantial medical expenses for medical care and attention and will continue to incur additional medical expenses into the foreseeable future.
13. As a further result of the above negligent acts committed by Defendant, Mr. Gorivodsky has incurred and will continue to incur substantial financial harm due to vehicular property damage.
14. In addition, Mr. Gorivodsky has suffered other economic injury and will likely continue to suffer such economic injury.
15. Defendant, vicariously, through its agent/employee/authorized representative, Mr. Palma-Perez, operated its vehicle in such a careless and/or negligent manner as to have caused the aforesaid collision to occur.
16. Defendant had a duty to Mr. Gorivodsky to not employ individuals who would operate its vehicle in such a careless and/or negligent manner.
17. Defendant breached said duty, as set forth below.
18. As a direct and proximate result of the aforesaid acts, omissions, carelessness and/or negligence on the part of Defendant, Mr. Gorivodsky suffered severe personal injuries; has been and will be in the future, made to endure great pain and suffering, both physical and mental in nature, has been and will be in the future required to expend great sums of money

for medical services; has been and will be in the future prevented from attending to his regular activities, duties and responsibilities; has been and will in the future be made to suffer lost earnings and other pecuniary loss.

19. The aforesaid accident was caused by the negligence and/or carelessness of Defendant because it, itself, and/or, vicariously, through its agent/employee/authorized representative, Mr. Palma-Perez:

- a) Failed to keep its vehicle under control at all relevant times;
- b) Caused its vehicle to be driven at an excessive speed under the circumstances;
- c) Violated the Assured Clear Distance Ahead Rule;
- d) Disregarded traffic signals and signs;
- e) Failed to keep a proper lookout;
- f) Violently struck Plaintiff's vehicle from behind;
- g) Was driving in distracted fashion;
- h) Negligently hired Mr. Palma-Perez;
- i) Negligently trained Mr. Palma-Perez;
- j) Negligently caused/forced Mr. Palma-Perez to drive its vehicle when she was in an unfit physical and/or mental condition to do so;
- k) Caused its vehicle to be in an unsafe condition; and
- l) Otherwise failed to exercise due care under the circumstances.

20. As the result of the above-referenced accident, Mr. Gorivodsky suffered painful and serious injuries, including, but not limited to:

- a) disc herniation at C5-C6;
- b) right wrist TFC tear;
- c) sinus tarsi syndrome with ligamentous damage;

- d) C5-C6 and L5 radiculopathy;
- e) other radiculopathy;
- f) cervicalgia;
- g) nerve damage throughout his body;
- h) strains, sprains, disc bulges and disc herniations throughout his body, the extent of which is presently unknown;
- i) torn ligaments and tendons throughout his body, the extent of which is presently unknown;
- j) head injuries, the extent of which is presently unknown; and
- k) emotional harm, the extent of which is presently unknown.

21. As a result of such accident, Mr. Gorivodsky has incurred medical expenses and will continue to incur said medical expenses for an indefinite time into the future.

22. As a result of such accident, Mr. Gorivodsky has incurred unreimbursed property loss/damages and will continue to incur said expenses for an indefinite time into the future.

23. As a result of such accident, Mr. Gorivodsky suffered grievous pain and suffering and may continue to suffer same for an indefinite time into the future.

24. As a result of such accident, Mr. Gorivodsky has suffered lost wages, and will suffer a loss of future earnings capacity.

25. As a further result of such accident, Mr. Gorivodsky has suffered and will continue to suffer a loss of life's pleasures.

WHEREFORE, Plaintiff, Roman Gorivodsky, demands judgment against the Defendant, Amazon Logistics, in an amount in excess of \$150,000.00, plus costs, fees and whatever additional relief that this Honorable Court deems just and appropriate.

THE BARRIST FIRM, LLC

A handwritten signature in blue ink, appearing to read 'Adam S. Barrist', with a long horizontal flourish extending to the right.

Adam S. Barrist, Esq.
THE BARRIST FIRM, LLC
P.O. Box 1820
Media, PA 19063

Attorney for Plaintiff

Date: May 13, 2022

